

Court No. - 39

Case :- WRIT - C No. - 9586 of 2017

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Manoj Kumar Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

It is stated in paragraph 16 of the writ petition that the Electricity Department has given contract to a private agency for recovery of the electricity bills from the consumers and the agents of this private agency have been causing great harassment to the petitioner and his family.

Learned counsel for the respondents prays for and is granted five days' time to seek instructions.

Place this petition as fresh on 7 March 2017.

Order Date :- 2.3.2017

Ashish Pd.

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 9586 of 2017

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Manoj Kumar Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Learned counsel appearing for the respondent-Department has stated that no private agency has been engaged for the recovery of bills.

Learned counsel for the petitioner has however, stated that a private agency has been engaged for recovery of the amount and not for issuance of the bills.

A specific affidavit to this effect may be filed by the petitioner within a week.

List on 20 March 2017 showing the name of Sri Chandan Agarwal as counsel for the respondent. The instructions may be kept on record.

Order Date :- 7.3.2017

Ashish Pd.

(Dilip Gupta, J.)

(Siddhartha Varma,J.)

Court No. - 39

Case :- WRIT - C No. - 9586 of 2017

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Manoj Kumar Pandey

Counsel for Respondent :- C.S.C.

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Supplementary affidavit filed today be taken on record.

As prayed list this petition in the additional cause list on 23 March 2017. Learned counsel for the petitioner shall inform learned counsel for the respondents about the order passed today in writing.

Order Date :- 20.3.2017

sartaj

(Dilip Gupta,J.)

(Siddhartha Varma,J.)

Court No. - 39

Case :- WRIT - C No. - 9586 of 2017

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Manoj Kumar Pandey

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

As prayed for by learned counsel for the petitioner place this petition on 27 March 2017 in the Additional Cause List to enable him to serve notice upon Sri Chandan Agarwal, learned counsel appearing for the respondents.

Order Date :- 23.3.2017

vkj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 9586 of 2017

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Manoj Kumar Pandey

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

Sri Chandan Agarwal, learned counsel for the respondents has placed before the Court the instructions dated 22 March 2017. The instructions may be kept on record. He, however, prays for and is granted two days' time to file an affidavit.

Place this petition on 30 March 2017 in the additional cause list.

Order Date :- 27.3.2017

SK

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 9586 of 2017

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Manoj Kumar Pandey

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

The petitioner has raised a dispute about the electricity dues in the bills sent by the respondent-Corporation.

It was sought to be contended by learned counsel for the petitioner that the Department has engaged private persons to recover the amount. This fact has been denied in the affidavit filed by the Executive Engineer. It has been stated that the contract has been given to private persons only to issue the bills and in case the amount is not paid, the matter is referred to the Vigilance Department for taking appropriate steps.

Any dispute regarding the bills can be raised by the petitioner under Clause 6.5 of the Electricity Supply Code, 2005.

It would, therefore, not be appropriate to the Court to entertain this petition. It is, accordingly, dismissed.

Order Date :- 30.3.2017

sartaj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)